DIGITAL PERSONAL DATA PROTECTION ACT, 2023

Section 1. Short Title and Application

This Act may be called the Digital Personal Data Protection Act, 2023. It applies to the processing of digital personal data within India where such data is collected in digital form or digitised subsequently. It also applies to processing outside India if such processing is in connection with offering goods or services to Data Principals in India.

Section 4. Grounds for Processing Personal Data

A person may process the personal data of a Data Principal only in accordance with the provisions of this Act and for a lawful purpose for which the Data Principal has given consent, or for certain legitimate uses specified in Section 7.

Section 5. Notice for Consent

Every request for consent shall be preceded or accompanied by a notice informing the Data Principal of: (a) the personal data sought and the specified purpose of processing; (b) the manner in which the Data Principal may exercise rights under Section 11 and make a complaint to the Data Protection Board.

Section 8. General Obligations of Data Fiduciary

A Data Fiduciary shall protect personal data in its possession or under its control by taking reasonable security safeguards to prevent personal data breach. In the event of a personal data breach, the Data Fiduciary shall give the Board and each affected Data Principal intimation of such breach.

Section 9. Processing of Personal Data of Children

A Data Fiduciary shall, before processing any personal data of a child, obtain verifiable parental consent. A Data Fiduciary shall not undertake tracking or behavioural monitoring of children or targeted advertising directed at children.

Section 33. Penalties for Breach

If the Board determines non-compliance, it may impose financial penalties: (a) up to two hundred and fifty crore rupees (INR 250 Crores) for failure to take reasonable security safeguards to prevent data breach; (b) up to two hundred crore rupees for failure to notify data breach.